

Before the
FEDERAL MARITIME COMMISSION

Washington, DC 20573

Docket No. 22-21

MSRF Inc. v. Yang Ming Marine Transport Corporation.

**COMPLAINANT’S MOTION FOR ENLARGEMENT OF TIME TO
FILE REPLY BRIEF**

Pursuant to Rules 502.215, 502.102, and 502.69 of the Commission’s Rules of Practice and Procedure (46 C.F.R. §§ 502.215, 502.102, 502.69 and 502.71) Complainant MSRF, Inc. (“MSRF”) moves the Federal Maritime Commission to enlarge the time for MSRF to file its Reply Brief by 21 days until July 19, 2023. MSRF has good cause for an enlargement because Respondent’s Yang Ming Marine Transport Corporation (“Yang Ming”) Brief in Opposition of MSRF’s Initial Brief is 78 pages in length and cites to 50 Federal Maritime Commission decisions, many of which are not published online and are only available in hard copy reporters in the Commission’s library.

On April 21, 2023, MSRF filed its Initial Brief (the “Initial Brief”), proposed findings of fact, and appendix. And on June 14, 2023, Yang Ming filed their Brief in Opposition to MSRF’s Initial Brief (the “Opposition Brief”).

On June 21, 2023, undersigned counsel for MSRF conferred with Yang Ming’s counsel regarding this motion. Yang Ming stated that it cannot consent to the motion and will file a response.

Rule 502.102 permits the extension of time to file documents “upon a showing of good cause.” Good cause exists because many of the FMC decisions cited by Yang Ming in their

Opposition Brief are not published online. MSRF has attempted to obtain a copy of the S.R.R. Unfortunately, no library in the Chicago area has a copy of the S.R.R. Additionally, per the Secretary's office, no current list exists that displays the library locations that store FMC's decisions. As such, MSRF will be required to obtain physical copies of the decisions from the FMC library located in Washington, D.C. MSRF cannot properly respond to all of the substantive allegations Yang Ming makes in their Opposition Brief without first reviewing the FMC decisions Yang Ming cites to support their allegations.

WHEREFORE, MSRF, Inc. respectfully requests that the Administrative Law Judge of the Commission grant its Motion for Enlargement of Time to File MSRF's Reply Brief because good cause exists to grant MSRF's Motion.

Dated: June 21, 2023

Respectfully submitted,

CLARK HILL PLC

/s/ R. Kevin Williams

R. Kevin Williams
kwilliams@clarkhill.com
312.985.5907
130 E. Randolph Street, Suite 3900
Chicago, IL 60601
Counsel for Complainant MSRF, Inc.

CERTIFICATE OF SERVICE

I certify that on June 21, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of August 22, 2022.

Attorneys for Respondent Yang Ming:

Rebecca Fenneman
Eric C. Jeffrey
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005
ejeffrey@jeffreyfenneman.com
rfenneman@jeffreyfenneman.com

/s/ R. Kevin Williams
R. Kevin Williams
kwilliams@clarkhill.com
312.985.5907
Clark Hill PLC
130 E Randolph Street
Suite 3900
Chicago, IL 60601